三條殿ヨリ大隈殿へ御書翰被華英譯

Translation of Extract of
the communications from
S. Sanjo to S. Okuma.

The 20th of the 4th month.

Sir

Regarding the Formosan expedition in connection with which you had received instructions, the American Minister raised his objections to the Minister for Foreign Affairs against the proceeding of Mr Legendre and two other American gentlemen in the employ of our Government and against the charter of the steamer "New york" and you will see the details from the enclosures, consisting of three copies of correspondence and a report of conversation between them on the subject.

Transmitting these enclosures to you I beg to inform you that you will take Foreign & Japanese interest and our

our government's object into consideration and in conformity with the American Minister's request take such measures as you may think proper.

As to the details of the matter you will hear directly from Mr Konai Gonsho naishi.

S. Sanjo
Prime Minister

To
Okuma Shigenobu
Sangi and Minister
for Finance Department.

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米國公使ヨリ外務卿宛米國人在米國船雇入ニ付云々異論ノ書翰

U. S. Legation, Japan.
Tokei, 18 april, 1874.

Your Excellency.

For the first time I learn by an article in the "Japan Daily Herald" of the 17th instant, that the "japanese expedition now being fitted "out" comprehends within its scope effecting a settlement on and subsequently, if permitted, a permanent occupation of the Eastern side of the Island of Formosa".

It is also asserted in the same article that "American ships have been employed to sail under the American flag on what must be regarded, in the absence of the necessary authoritative declarations, as a semi-filibustering expedition and that Mr Bingham, the American Minister, has tacitly, if not

"not expressly, sanctioned such employment," and that the American Government has so far sanctioned "as to grant leave to officers in its service to identify themselves with it, etc."

Inasmuch as these charges gravely imply that your government is about to commit any act of war against China, or a portion of her people, I beg leave to know whether any ships of the United States have been chartered under the authority of the government of Japan to engage in a military or naval expedition against and hostile to Formosa, and whether any officers or citizens of the United States have been employed by the government of Japan in such expedition.

It is due to myself to say that I have at no time been consulted about employing either American ships or officers

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officers for any such hostile purpose, I was assured by two American citizens, who were invited to take employment in your government, that they were not to engage in hostilities against any power whatever and that no act hostile to China or any other power with which the United States is at peace was contemplated by your Excellency's government.

It is due to my government that I should know at once whether any such hostile purposes are entertained by your Excellency's government towards China or any portion of the people, thereof or any other power or people as are attributed to it by the article I have cited, and I have the honor to request that your Excellency will advise me without delay and definitely on that subject. Without assuring

assuring that any such purposes are entertained by the Japanese government, I beg leave to say that it is my duty in the name of my government to protest, as I do hereby protest, against the employment by your Excellency's government of any ship or any citizen of the United States in any military or naval expedition hostile to the government or authority of China, or to any portion of her people, inasmuch as such employment is expressly forbidden and prohibited by the laws of the United States.

I am, with great respect
your Excellency's obedient servant.
(signed) Jno. A. Bingham.

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Translation

外務卿ヨリ前書異論一件ニ付別紙處蕃手續書添ヘ米國公使ヘ返翰

Tokei, the 19th day 11th month 7th year of Meiji.

Your Excellency

I have the honor to acknowledge the receipt of your Excellency's despatch dated the 18th April 1874, in which you state that you have learnt by an article in "Japan Daily Herald" of the 17th inst. published at Yokohama that a japanese expedition to Formosa being now fitted out comprehends within its scope, "a permanent occupation of the Eastern side of the Island of Formosa", and that it is also asserted in the same article that "American ships have been employed to sail, and also that you have tacitly sanctioned such employment and that your government has sanctioned to engage your officers in its service, etc."

As the foregoing article implies that my government is about commit an act of war against China or a portion of her people, in the same despatch you express your anxious desire to know at once whether any ships of your country have been chartered under the authorities of my government to engage in such expedition against hostile to Formosa and whether any such hostile purpose is entertained by my government towards China and any portion of the people thereof, I beg leave in reply to say that, as I detailed to you in our last interview, my government is the point of sending a High commissioner to the Aborigines of Formosa, to take such proper measures as will enable our people upon our inflicting fitting retribution on the Formosans, who have recently pillaged and maltreated countrymen of

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of ours cast away upon their coast to here after navigate their waters in safety.

As a precautionary measure however, in case they should threaten to oppose our mission, troops accompany the expedition to guard against any emergency or opposition. My government is far from entertaining the slitest intention of performing any hostile acts against China.

If your Excellency will perceive from what precedes, that the officers and ships of your nationality, engaged in this service, are employed in a quiet and amicable understanding and without any hostile intent.

In your Excellency's further information I have the honor to enclose memorandum concerning the present expedition to Formosa.

with respect & consideration

Terashima Munenori.
H. I. J. M.'s Minister
for Foreign Affairs

His Excellency
J. A. Bingham
Envoy extraordinary &
Minister Plenipotentiary
of the U. S.

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